

		the email from his own office that included the new hearing date in the body of the email, and (3) the trial date had been set on 2/23/26. The trial date is especially significant here. Code Civ. Proc., § 437c(a)(3) states that a MSJ “shall be heard no later than 30 days before the date of trial...” Counsel does not dispute that he was aware of and in possession of Defendants’ MSJ. Knowing that trial was scheduled for February 23rd, a reasonable attorney would expect that the hearing date for the MSJ (which had already been filed) would be no later than January 23rd, and thus would both keep himself apprised of the Court’s docket and start preparing an opposition. Based on the foregoing, the motion is DENIED. Defendants shall give notice.
52	<i>Mona Nemat et al. v. Lucas Corselli et al.</i>	Plaintiffs Mona Nemat and Ali Nemat’s Motion for Leave to File a Third Amended Complaint is GRANTED. The Court finds Plaintiffs should be permitted to file the amended pleading. (Code Civ. Proc., § 464.) Plaintiffs seek leave to file a public nuisance claim against Defendant Wong. Plaintiffs claim they discovered facts to support the claim following discovery, and that the proposed amendments are necessary and proper and relate back to the same facts alleged in the operative Second Amended Complaint. The motion is accompanied by a supporting declaration and a copy of the proposed pleading. No one has filed an opposition to the motion. Plaintiffs shall file the Third Amended Complaint within 15 days of this ruling and shall give notice of the ruling.

53	<i>Nguyen vs. Botros</i>	Plaintiff James Nguyen’s Motion for Leave to File a First Amended Complaint naming new party Dina Moussa, D.D.S. is DENIED. Due process forbids relation back where the amended complaint is against a new defendant—i.e., one not named in the original complaint and not served as a “Doe”: “The straightforward rule is that amendment after the statute of limitations has run will not be permitted where the result is the addition of a party who, up to the time of the proposed amendment, was neither a named nor a fictitiously designated party to the proceeding.” (Ingram v. Sup.Ct. (Slinkard) (1979) 98 Cal.App.3d 483, 492; Woo v. Sup.Ct. (Zarabi) (1999) 75 Cal.App.4th 169, 176.) Here, the injury occurred in 2019 and 2020 according to the Complaint and proposed first amended complaint. (ROA 1 and ROA 168, Ex. A.) Specially appearing Defendant Dina Moussa, D.D.S. has shown that the statute of limitations has run for all of the proposed claims against this new party. Plaintiff chose not to file a reply or respond to these arguments. The Motion is therefore DENIED.
54	<i>Sinha vs. Yang</i>	Cross-Defendant Alexander Christopher Shilvock’s motion for good faith settlement determination under Code of Civil Procedure section 877.6 for his prelitigation settlement with plaintiffs Bilmal Sinha, Sushma Sinha, and